

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 14, RICHMOND
JUDICIAL OFFICER: KIRK ATHANASIOU
HEARING DATE: 03/03/2026

For matters where an appearance is required, the parties should appear by Zoom unless told to appear by another method. For all other matters, if argument is requested appearances may be in person or by Zoom.

Please email Dept14@contracosta.courts.ca.gov and opposing counsel by 4:00 p.m. if oral argument is requested and include specification to be argued.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/16103009385?pwd=TjFZRDBnNkVQRlV0Znhvai9qT05tZz09#success>

Law & Motion

1. 9:00 AM CASE NUMBER: L23-06946

CASE NAME: CITIBANK, N.A. VS. TATIYANA MINNIKOFF

***HEARING ON MOTION IN RE: TO SET ASIDE NOTICE OF SETTLEMENT AND ENTER JUDGMENT PURSUANT TO STIPULATION**

FILED BY: CITIBANK, N.A.

TENTATIVE RULING:

Background

Plaintiff filed a motion to set aside notice of settlement and enter judgment pursuant to stipulation. The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant's attorney.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called judgment to be entered in a specified amount, plus costs, less any credits for payments received.

Costs are listed as \$314, for court expenses.

The Stipulated Agreement was filed 12/15/25.

The balance, including costs and payments made by the Defendant, is \$2,257.28.

Disposition

Plaintiff's Motion is granted.

Plaintiff to file Order.

2. 9:00 AM CASE NUMBER: L24-06739

CASE NAME: JOHN LANGERSTON VS. JOHN KANG

***HEARING ON MOTION IN RE:**

FILED BY:

***TENTATIVE RULING**

Background

Plaintiff filed a Motion, on 1/2/26, apparently for the purpose of setting aside the court's order, filed on 5/14/25, setting aside the Entry of Default against the Defendant. This is the stated purpose in the caption of Plaintiff's motion.

However, the body of Plaintiff's motion is largely incoherent.

There are only two references to any legal authority that seem to have any bearing on the purpose of this Motion, and those are to Sections 472 and 1008 of the Code of Civil Procedure.

The court's order from 5/14/25, set aside the Entry of Default after finding that Defendant didn't understand that the instant matter was a separate legal matter – that required separate responses from the Defendant - from the small claims matter that involved the same two parties, and largely the same issues, and which had already been resolved in favor of the Defendant.

Analysis

To the extent that Plaintiff is arguing that Section 473(b) of the Code of Civil Procedure should compel this court to set aside the 5/14/25 Order, he offers no explanation of how his mistake, inadvertence, surprise, or excusable neglect played any role in the court's decision to set aside the Entry of Default. And Plaintiff's failure to offer an explanation notwithstanding, this court doesn't believe there would be such an excuse for the 5/14/25 Order, an order which involved analysis of whether *Defendant* had a proper excuse for failing to provide a timely Answer to Plaintiff's Complaint. Nothing in that Order hinged at all on any action or failure to act by the Plaintiff, so it is unclear how his mistake or inadvertence could have led to a different outcome.

And any claim under CCP Section 1008, which governs a party's ability to request that a court reconsider its own ruling, is untimely. Section 1008 requires that the moving submit their request for reconsideration within 10 days after written notice of entry of the order at issue. In the instant matter, an Order was filed on 10/21/25, that explicitly referenced the court's order, on 5/14/25, to Set Aside the Entry of Default. The 10/21/25 Order was mailed by the Court Clerk's Office to the Plaintiff, on 10/21/25, the address for Plaintiff that he listed on his most recent court filing, which was